



Appeal Decision

Site visit made on 30 June 2026

by Andrew Phillips MPlan BA CertHE MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6008668

Stables West of Green Street, Shenley Hertfordshire

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Sue Harrington against the decision of Hertsmere Borough Council.
 - The application Ref is 25/1719/FUL.
 - The development proposed is redevelopment of the site for the erection of a bungalow.
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Decision

1. The appeal is allowed and planning permission is granted for redevelopment of the site for the erection of a bungalow at Stables West of Green Street, Shenley Hertfordshire in accordance with the terms of the application, Ref 25/1719/FUL, subject to the conditions in the attached schedule.

Preliminary Matters

2. I have used the site description from the decision notice, as this provides greater clarity of site location.
3. Following the appellant submitting an Arboricultural Method Statement, the Council has stated that any impact on trees could be dealt with via a prior to commencement condition. On this basis, this reason for refusal is no longer a main issue.
4. Different versions of the Block Plan have been provided, which have relatively minor changes. However, I will make my decision based on Rev B as this is the one that was determined by the Council.
5. The Preliminary Ecology Appraisal that I have been provided is dated 31/01/2026 in the document, though the Council refers to this as 9 February 2026. I presume this is the date that the Council received the document. I will go by the date on the document when referring to this document.

Main Issues

6. The main issues are:
 - Whether the proposal would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework 2024 (Framework) and relevant development plan policies.
 - The effect of the proposal on the openness and purposes of the Green Belt.
 - The effect of the proposal on the rural character and appearance of the area.

Reasons

Is the proposal inappropriate development?

7. I have noted the approved development under reference TP/2000/0451 that gave permission for the erection of stables and access. It also shows that the surrounding fields of where the stables are located and where the access track is located as part of the site. There are no details of when or if the siting of the mobile home adjacent to the stables gained permission.
8. The proposal is seeking to demolish the existing stable building and replace it with a two bedroom single storey dwelling. The replacement of the stables with the dwelling is the primary element of the proposal. The proposal also seeks to increase the driveway size between the existing stables and Green Street and provide a new material of grasscrete or similar.
9. The Council acknowledged in its Delegated Report that the existing stables would constitute as previously developed land, which the proposed dwelling would be situated on. The primary dispute between the two parties is whether the access track counts as previously developed land.
10. The appellant has provided details planning permission TP/2000/0451 for the erection of the stables. The Committee Report, provided by the appellant, for this previous permission details that the site consists of two adjoining fields, with one of these being access from Green Street. The proposed access was from Green Street and appears in approximately the same location as the existing site access. The application site plan shows the field adjacent to Green Street as being part of the proposal. An additional plan shows the division of proposed stables field, field adjacent to Green Street and a separate parcel for The White House.
11. The access between Green Street and the existing stables is not specifically defined, apart from access via specific gates. However, the field that the site crosses from the evidence before me is more likely to have been used for the keeping of horses for recreational purposes than it has for agriculture and would certainly have been crossed on a regular basis to provide access between the stables and the public highway. The hard landscaping of a new driveway is ancillary development to the creation of a new dwelling. On this basis, I conclude that the proposal would meet paragraph 154 (g) of the National Planning Policy Framework 2024 (Framework) in so far as it relates to previously developed land. On this basis, the proposal is not inappropriate development subject that it does 'not cause substantial harm to the openness of the Green Belt'.
12. It is also noted that the access widening to the existing stables had a likely chance of being able to be secured via the definition of an engineering operation, which also constitutes as not inappropriate development if it preserves the openness of the Green Belt.

Openness and purposes of the Green Belt

13. Paragraph 142 of the Framework states 'The fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open; the essential characteristics of Green Belts are their openness and their permanence'.
14. The creation of additional hard landscaping over the current grass field to create an access would have some urbanising impact upon the rural character of the area.

The very low height of the built form of the proposed access and that the proposal would potentially lead to a noticeable increase in vehicles parking on the site would mean impact on the openness of the Green Belt is limited. Whilst it is noted that the impact might be greater during times when the grass is worn out or affected by draughts and winter it is still only likely to have a limited impact on the openness of the Green Belt. This in turn would cause limited harm the rural character of the area.

15. Given that the proposal would not cause substantial harm to the openness of the Green Belt the proposal complies with paragraph 154 and on this basis is not inappropriate development within the Green Belt. Therefore, there is no requirement to assess the proposal under paragraph 155 of the Framework that includes if the site is in a sustainable location.
16. The proposal therefore is not inappropriate development. On this basis, it complies with Policy CS13 of the Hertsmere Local Plan Core Strategy 2013 (Core Strategy) that seeks to prevent inappropriate development in the Green Belt as well as considering previously developed land in the Green Belt in line with the Framework. The proposal also complies with Policy SADM26 of the Hertsmere Local Plan Site Allocations and Development Management Policies Plan (Development Management Policies) details how development will be considered in the Green Belt including that replacement buildings should not be materially bigger than the one it replaced.

Additional harm

17. In relation to the harm to the impact on the rural and verdant surroundings of Green Street, I have concluded on this above in that it would cause limited harm upon the character and appearance of the local area.
18. With there being harm to the rural character of the area the proposal does not comply with Policy SP1 and CS22 of the Core Strategy that in total seek to enhance the character of an area and Policies SADM11 and SADM30 of the Development Management Policies that in total also seek to conserve or enhance the landscape. The proposal also does not comply with Policy SH1 of the Shenley Plan 2019-2036 Made May 2021 that seeks development to enhance the rural character
19. Whether the site is in a sustainable location has been raised by parties. However, this did not form a specific reason for refusal by the Council and as noted above there is not a requirement to consider the proposal under paragraph 155 of the Framework. In addition, the use of the site already requires people accessing the site on a regular basis to look after horses. I therefore do not find any additional harm that would materially affect my decision in this specific appeal.

Planning Balance

20. Whilst I have concluded that the proposal is not inappropriate development, other harm has been identified.
21. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning applications to be determined in accordance with the development plan, unless material considerations indicate otherwise.
22. The Council accepts that they cannot demonstrate a deliverable five year supply of housing land as required by Paragraph 78 of the Framework. Consequently,

paragraph 11 d) of the Framework, which is a material consideration of significant weight, is engaged. It states that planning permission should be granted unless any adverse impacts of doing so would significantly and demonstrably outweigh the benefits when assessed against the policies of the Framework taken as a whole, having particular regard to key policies for directing development to sustainable locations, making effective use of land, securing well-designed places and providing affordable homes, individually or in combination.

23. The Framework does not change the statutory status of the development plan as the starting point for decision making. The proposal is not in accordance with the aforementioned policies of the Local Plan, with the harm to the character and appearance of the local area. For this reason, the proposal conflicts with the development plan as a whole and should be refused unless other material considerations indicate otherwise.
24. The Framework promotes residential development where it will enhance or maintain the vitality of rural communities and acknowledges that this might be in nearby settlements. The benefit of the single dwelling in supporting services within nearby settlements is limited. There is a likely limited economic benefit during the construction phase and long-term from the additional potential workforce.
25. Given the limited harm to the rural appearance of the area and that there is a significant lack in the five year supply of housing land, the benefits clearly outweigh the harm in this case.

Conditions

26. The Council has provided a list of suggested conditions and confirms that all suggested pre-commencement conditions have been agreed by the appellant.
27. The commencement development condition is required to ensure the development is started within a reasonable timeframe.
28. The Council whilst suggesting a compliance with approved plans condition, did not provide the list of plans. I have therefore taken the most up to date plans provided to me, apart from the Block Plan as detailed in preliminary matters.
29. The suggested condition to ensure unexpected contamination is reported is a necessary condition to ensure long term public health is protected.
30. A materials condition is necessary to ensure the proposal meets the definition of a high quality development. However, this can be a prior to above ground works condition and on this basis I will amend the suggested wording.
31. The suggested condition by the Council to ensure the proposal meets Part M, M4 (2), Category 2: Accessible and Adaptable Dwellings of the Building Regulations 2013 has not been explained why this condition is necessary. On this basis, I will not be adding it.
32. A condition to secure suitable cycle storage is necessary to encourage some trips to be taken by more sustainable means. I will update the suggested condition by the Council to better ensure details are provided and complied with.
33. A condition to ensure long term sustainability of the site is considered reasonable and therefore will be added.

34. The conditions on biodiversity as suggested by the Council will be duly added to ensure ecological protection and benefits from the proposal.
35. The Council is seeking to ensure the appellant ensures protection of Great Crested Newts. However, the Council is not seeking to agree the details and uses the word 'should' several times. Given the Council is leaving this to the discretion of the developer and that there are separate conditions to protect biodiversity. This condition is not necessary or enforceable.
36. From the evidence before me, the appellant has provided an adequate Arboricultural Method Statement that the Council seemed to be supportive of. On this basis, I will add this document to the approved plan list, will add a separate condition to ensure compliance and will also add a landscaping scheme to ensure a detailed landscaping drawing is brought forward.
37. I have noted the concerns by a nearby resident regarding foul water drainage/treatment. It is also noted on the appellant's application form that appellant does not know how foul sewerage will be dealt with. A condition will be placed to ensure that details of this are provided at a suitable stage and implemented before first occupation. It is expected that priority is given to ensure that sewerage is properly dealt with and treated to prevent water and/or ground pollution.

Conclusion

38. For the reasons given above the appeal should be allowed.

Andrew Phillips

INSPECTOR

Schedule 1 – Conditions

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans: 6270-OS1, Block Plan Revision B, 6270-P01 and Arboricultural Method Statement April 2026.
- 3) In the event contamination is found at any time when carrying out the approved development, it must be reported in writing immediately to the Local Planning Authority. An investigation and risk assessment must be undertaken in accordance with details to be agreed in writing with the Local Planning Authority. Where remediation is necessary, a remediation scheme must be submitted to and approved in writing by the Local Planning Authority. Following completion of measures identified in the approved remediation scheme a verification report shall be submitted to and approved in writing by the Local Planning Authority.
- 4) Prior to above ground works, samples of all external facing materials shall be submitted to and approved in writing by the Local Planning Authority. The development shall be carried out in accordance with the approved details.
- 5) The development shall not be occupied until facilities for the secure storage of cycles have been provided in accordance with details to be submitted to and approved in writing by the Local Planning Authority and they shall be retained in perpetuity.
- 6) No development above damp proof course shall take place until a Climate Change and Sustainability Statement has been submitted to, and approved in writing by, the Local Planning Authority. As a minimum the statement shall include the following information:
 - How the scheme has been designed taking into account the generic principles of Policies CS16 and CS17 (eliminate, reduce, substitute and offset) taking a structured approach seeking to reduce carbon emissions;
 - How materials will be selected having regards to carbon reduction objectives;
 - Any other relevant information which has been taken into account to minimise carbon emissions resulting from the scheme, such as the principles of fabric first, energy efficiencies, emitted or embodied carbon.
 - Measures taken to reduce water usage during occupation of the development.

The sustainability measures set out within the statement shall thereafter be implemented in full prior to the first occupation of the dwelling.
- 7) The development shall be constructed in accordance with the submitted and approved BNG Metrics calculation and the Preliminary Ecological Appraisal (dated 31/01/2026).

- 8) Prior to first occupation of the development hereby approved ecological enhancement measures identified within Section 4 of the Preliminary Ecological Appraisal dated 31/01/2026, an Ecological Enhancement Plan (EEP) shall be submitted to and approved in writing by the Local Planning Authority.

The EEP shall include:

- a) The precise location of each ecological enhancement measure identified within Section 4 of the approved ecological report, shown on a scaled plan;
- b) Full details and specifications of each enhancement measure, including dimensions, design, materials and installation methods where relevant;
- c) A timetable for implementation;
- d) Details of any habitat creation, landscaping and planting proposals, including species mixes and planting specifications;
- e) Details of the future management and maintenance of the enhancement measures for a minimum period of five years.

The ecological enhancement measures shall thereafter be implemented and maintained in full accordance with the approved Ecological Enhancement Plan and retained for the lifetime of the development.

- 9) No development above ground level shall commence until there shall have been submitted to and approved in writing by the Local Planning Authority a scheme of landscaping. All planting, seeding or turfing comprised in the approved details of landscaping shall be carried out in the first planting and seeding seasons following the occupation of the buildings or the completion of the development, whichever is the sooner; and any trees or plants which within a period of 5 years from the completion of the development die, are removed or become seriously damaged or diseased shall be replaced in the next planting season with others of similar size and species.
- 10) Prior to any demolition or construction works the tree protection details detailed in the Arboricultural Method Statement April 2026 shall be put in place and maintained during all demolition and construction works.
- 11) No development above ground level shall commence until details of a scheme for the disposal of foul and surface water has been submitted to and agreed in writing by the Local Planning Authority. The scheme shall be implemented in accordance with the approved details prior to the first occupation of the development and retained in perpetuity.

End of Schedule